

13.	25CV2902	CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK VS. RENEE M ROMANKO
MOTION FOR JUDGMENT ON THE PLEADINGS		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On July 21, 2026, Plaintiff, Capital One, N.A., Successor by Merger to Discover Bank ("Plaintiff"), filed a Motion for Judgment on the Pleadings. No opposition has been filed.

Background

This matter stems from Plaintiff's efforts to collect \$7,054.49 in credit card debt from Defendant, Renee M Romanko ("Defendant"). The Complaint asserting a cause of action for Breach of Contract (written) was filed on October 30, 2025.

Defendant filed an Answer on December 19, 2025, wherein Defendant admitted all of the statements in the Complaint were true, except Defendant requested a validation of debt, with a chain of title and proof of ownership, as well as the original credit card agreement with her signature and proof of dollar figure. Defendant also asserted the same as an affirmative defense.

Legal Principles

A plaintiff may move for judgment on the pleadings if the complaint states facts sufficient to constitute a cause of action against that defendant and the answer fails to state facts sufficient to constitute a defense to the complaint. Code Civ .Pro. § 438 (c)(1)(A). The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.

"A plaintiff's motion for judgment on the pleadings is analogous to a plaintiff's demurrer to an answer and is evaluated by the same standards. (See *Hardy v. Admiral Oil Co.* (1961) 56 Cal.2d 836, 840-842, 16 Cal.Rptr. 894, 366 P.2d 310; 4 Witkin, Cal. Procedure (1971) Proceedings Without Trial, § 165, pp. 2819- 2820.) The motion should be denied if the defendant's pleadings raise a material issue or set up an affirmative matter constituting a defense; for purposes of ruling on the motion, the trial court must treat all of the defendant's allegations as being true. (*MacIsaac v. Pozzo* (1945) 26 Cal.2d 809, 813, 161 P.2d 449.)" *Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330-331. However, where the defendant's pleadings show no defense to the action, then judgment on the pleadings in favor of the plaintiff is proper. See *Knoff v. City etc. of San Francisco* (1969) 1 Cal.App.3d 184, 200.

Courts may consider judicially noticeable matters in the motion as well. *Kapsimallis v. Allstate Ins. Co.* (2002) 104 Cal.App.4th 667, 672; *People ex rel. Harris v. Pac Anchor Transp., Inc.*

(2014) 59 Cal.4th 772, 777. “The court will take judicial notice of records such as admissions, answers to interrogatories, affidavits, and the like, when considering a demurrer, only where they contain statements of the plaintiff or his agent which are inconsistent with the allegations of the pleading before the court. The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff. (*Tyree v. Epstein*, 99 Cal.App.2d 361, 221 P.2d 1002.) [Footnote omitted.]” (emphasis added.) *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605.

A motion for judgment on the pleadings may be granted with or without leave to amend. Cal. Civ. Pro. § 438(h)(1). Generally speaking, leave to amend is to be liberally granted. *Mendoza v. Continental Sales Co.* (2006) 140 Cal. App. 4th 1395 (“When there is a reasonable possibility that a defect in pleading can be cured by amendment, the trial court considering the motion for judgment on the pleadings abuses its discretion by not granting leave to amend...”). However, where the defective pleading is not reasonably susceptible to cure, it is proper for the court to decline leave to amend. *Id.* When leave to amend is not granted, “...then judgment shall be entered forthwith in accordance with the motion granting judgment to the moving party.” Cal. Civ. Pro. § 438(h)(3).

Meet and Confer

Code of Civil Procedure § 439(a) provides a meet and confer requirement in which the moving party must meet in confer in person, by telephone, or by video conference for the purpose of determining whether an agreement can be reached. A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings.

Plaintiff’s Counsel’s Meet and Confer Declaration provides a letter was mailed to Defendant on June 24, 2026, regarding resolution of the matter and to discuss the claims contained in Plaintiff’s underlying motion. Defendant has failed to respond to the meet and confer attempt and therefore has been unable to resolve the claims raised by the motion for judgment on the pleadings.

Discussion

The Complaint asserts a cause of action for Breach of Contract (written). Plaintiff alleges that Defendant defaulted on the Agreement between Plaintiff and Defendant by failing to make payments required by the Agreement when due. Because the Defendant was in default under the Agreement, Plaintiff declared Defendant’s entire account balance of \$7,054.49 immediately due and payable. Defendant continues to fail to pay Plaintiff for all amounts due. As Defendant

admits in their Answer that all the statements are true, Plaintiff argues they are entitled to judgment on the pleadings.

Motions by a plaintiff for judgment on the pleadings, which are less common, are the equivalent of a demurrer to an answer, and the standard of review is obverse: the appellate court will assume the truth of all facts properly pleaded in the answer and will disregard the controverted allegations of the complaint. [Citations.]” (*Sebago, Inc. v. City of Alameda* (1989) 211 Cal.App.3d 1372, 1379–1380, [259 Cal.Rptr. 918] (*Sebago*).) Such a motion “must be denied if the defendant's pleadings raise a material issue or set up affirmative matter constituting a defense.” (*MacIsaac v. Pozzo* (1945) 26 Cal.2d 809, 812–813, [161 P.2d 449].) Stated differently, “[w]here the answer, fairly construed, suggests that the defendant may have a good defense, a motion for judgment on the pleadings should not be granted.” (*Barasch v. Epstein* (1957) 147 Cal.App.2d 439, 443, [305 P.2d 283].) *Engine Manufacturers Assn. v. State Air Resources Bd.* (2014) 231 Cal.App.4th 1022, 1034 [180 Cal.Rptr.3d 667, 676–677].

Plaintiff misconstrues Defendant’s Answer. Defendant did not simply admit all allegations. Defendant expressly requested a validation of the debt, a chain of title, proof of ownership, the original credit card agreement with her signature, and proof of the dollar figure claimed, which, if fairly construed, dispute the elements of Plaintiff’s breach of contract claim.

As a material issue of fact exists, Plaintiff’s Motion for Judgment on the Pleadings is denied.

TENTATIVE RULING #13:

PLAINTIFF’S MOTION FOR JUDGMENT ON THE PLEADINGS IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

September 18, 2026
Dept. 9
Civil Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**